

CREDITORS ADJUSTMENT BUREAU, INC. v HUSTON, III

24CF14419

DEFENDANT'S MOTION TO VACATE/SET ASIDE JUDGMENT

Now before the Court is Defendant's motion to vacate the judgment entered against her on November 13, 2024. She asserts that she was not served at the correct address and that many of the purported debts have been paid. Plaintiff has filed a notice with the Court that it does not oppose the motion.

Accordingly, Defendant's unopposed motion to vacate the judgment is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Defendant to prepare a formal Order complying with Rule 3.1312 in conformity with this Ruling.

URIBE v KAUR, et al

24CV47592

PLAINTIFF'S MOTIONS TO COMPEL RESPONSES TO FORM INTERROGATORIES

This civil action stems from allegedly negligent dental treatment provided to Plaintiff Jim Uribe ("Plaintiff") by Kirandeep Kaur and Kirandeep Kaur, DDS, Inc. ("Defendants"). Before the Court are Plaintiff's motions to compel further responses to Form Interrogatories. Because both motions refer to the same Form Interrogatories sent to each of the Defendants, the Court will address both motions herein with a single ruling.

I. Factual and Procedural Background

A. Background Facts

In the later part of 2021 and into the early part of 2022, Plaintiff consulted with Defendants in their Copperopolis office regarding a better option for his upper bridge. (FAC ¶ 5.) During this consultation period, Plaintiff was advised by Defendants of a product/procedure known as All on Four dental implants, which would be semi-permanent, natural looking implants. (*Id.* ¶ 6.) In January 2022, Plaintiff agreed to move forward with the All on Four dental implants product/procedure for \$15,000.00. (*Id.* ¶ 7.)

On February 18, 2022, Plaintiff went to Defendants' office to begin the process of what Defendants had previously represented would be All on Four dental implants. (FAC ¶ 8.) However, the implant process apparently required months of various appointments, including four appointments for surgical placement of implant body or posts and bone graft. He was also fitted with temporary teeth. Plaintiff believed that all these appointments were all necessary for the All on Four dental implants. (*Ibid.*)

During this time period, Plaintiff began to suffer from pain and swelling and was unable to eat anything but soft foods. (FAC ¶ 9.) Plaintiff returned numerous times to the office for adjustments, but nothing fixed the problem and he was eventually informed that one of the posts had been placed at a wrong angle and would need to be removed. (*Id.* ¶ 10.) In approximately May-August of 2022, Plaintiff was advised by Defendants that there were problems with two implants which would require additional surgeries. (*Id.* ¶ 11.)